

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3461

By: Hays

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 5-141, which relates to administrator compensation and benefits; updating internal citations; prohibiting school districts from paying certain administrator expenses with State Aid funds; requiring certain administrative expenditures to be paid with local revenue; defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-141, is amended to read as follows:

Section 5-141. A. Each school district of this state shall adopt a minimum salary schedule and shall transmit a copy of it to the State Board of Education within thirty (30) days after adoption. A school district shall not calculate salaries of teachers solely as a proportion of the salaries of the administrators of the district.

B. Districts shall be encouraged to provide compensation schedules to reflect district policies and circumstances, including differential pay for different subject areas and special incentives for teachers in districts with specific geographical attributes.

1 Districts may also adopt a salary schedule that provides additional
2 compensation for achieving certain ratings under the Oklahoma
3 Teacher and Leader Effectiveness Evaluation System (TLE) as set
4 forth in Section ~~6~~ 6-101.16 of this ~~act~~ title. Any salary schedule
5 adopted by a district pursuant to this section shall not set
6 salaries at amounts less than those set pursuant to Section ~~18-~~
7 ~~114.12~~ 18-114.15 of this title.

8 C. The State Department of Education shall compile a report of
9 the minimum salary schedules for every school district in the state
10 and shall submit the report to the Governor, Speaker of the House of
11 Representatives, and President Pro Tempore of the Senate no later
12 than December 15 of each year.

13 D. Each school district shall file within fifteen (15) days of
14 signing the contract, the employment contract of the superintendent
15 of the school district with the State Department of Education. The
16 Department shall keep all contracts available for inspection by the
17 public. The school district shall not be authorized to pay any
18 salary, benefits or other compensation to a superintendent which are
19 not specified in the contract on file and shall not pay
20 administrators any amounts for accumulated sick leave that are not
21 calculated on the same formula used for determining payment for
22 accumulated sick leave benefits for other full-time employees of
23 that school district and shall not pay administrators any amounts
24 for accumulated vacation leave benefits that are not calculated on

1 the same formula used for determining payment for accumulated
2 vacation leave benefits for other twelve-month full-time employees
3 of that school district.

4 E. By October 1 of each year each district board of education
5 shall prepare a schedule of salaries and fringe benefits paid
6 administrators employed by the district, including a description of
7 the fringe benefits. The schedule shall be a public record and
8 shall be disclosed as required by the Oklahoma Open Records Act.
9 The board shall file a copy of the schedule with the State
10 Department of Education within one week of completion.

11 F. No severance payment, contract buyout, or termination
12 settlement paid to a superintendent or other central office
13 administrator shall be paid with State Aid funds received through
14 the State Aid Formula, including any state supplements thereto. All
15 such payments shall be considered excess administrative expenditures
16 and shall be funded exclusively with local revenue.

17 G. For purposes of this section ~~the~~:

18 1. The term "administrator" shall include employees who are
19 employed and certified as superintendents, assistant
20 superintendents, principals, and assistant principals and who have
21 responsibilities for supervising classroom teachers; and

22 2. "Administrative expenditures" means expenditures for central
23 office administration and executive management, including but not
24 limited to:

- 1 a. compensation, benefits, stipends, bonuses, and
2 allowances for superintendents and assistant
3 superintendents,
4 b. compensation and benefits for central office
5 administrators and executive staff,
6 c. severance payments, contract buyouts, termination
7 settlements, or separation agreements for
8 administrative personnel,
9 d. vehicle, housing, or similar allowances provided to
10 administrative personnel,
11 e. payments to consultants or contractors performing
12 executive, managerial, or administrative functions,
13 and
14 f. payments made through interlocal agreements or
15 education service cooperatives for administrative or
16 management services.

17 SECTION 2. This act shall become effective November 1, 2026.

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